Narendra Singh Rana, Ips, Jt. ... vs State Of U.P. Through The Principal ... on 21 September, 2005

Equivalent citations: 2005CRILJ231

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Bench: K.N. Ojha

JUDGMENT

1. Heard Sri A.K. Misra, the learned counsel for the petitioner, Sri G.S. Hajela, learned counsel for the C.B.I, and Sri Surendra Singh, learned A.G.A.-I and also perused the materials on record.

2. This petition has been brought for quashing the written report registered at Case Crime No.332/05 under Sections 218, 420, 467, 468, 471, 120B IPC read with Section 13(1D) of the Prevention of Corruption Act at P.S. Garh Mukteshwar, Ghaziabad. Simultaneously the liberty of the petitioner by way of staying his arrest is desired to be protected. It is said that the petitioner is the senior IPS officer and presently working as Joint Commissioner of Police (P & I), Police Headquarters, New Delhi and has falsely been roped into the above offences so as to harass and harm his reputation. His father late Brig. Tej Singh (Retd.), who was decorated with Vishistha Sewa Medal, set up a family charitable trust known as 'Sri Ganga Sanatan Dharmarth Trust' (the Trust) of which the petitioner is one of the trustees. The petitioner in the capacity of the trustee moved an application to Sub-Divisional Magistrate (S.D.M.) on 6.3.2003 inviting his attention for incorrect entries in the revenue records showing certain properties in the name of trust. He also made representation on 15.5.2003 to the Tehsildar for the removal of those wrong entries. Not only this on 7.4.2004 he made representation to the Commissioner, Meerut Division, Meerut bringing all these facts into notice that 26 Bighas of land of Village Kotla Khadar has wrongly been entered into the name of his trust. Emphasis has also been laid that the petitioner himself was making all possible efforts for the correction of the entries in the revenue record but instead of appreciating his conduct this report was registered at Case Crime No.332/05 under Sections 218, 420, 467, 468, 471, 120B IPC read with Section 13(1D) of the Prevention of Corruption Act at P.S. Garh Muktshwar, Ghaziabad attributing false allegations against him for being instrumental in getting fake and forged entries in the revenue record in the name of certain Pattedar and then to have got transfererd of those properties on the basis of sale deed. It is further said that the proceedings for the expunction of the forged entries in the revenue records ought to have been drawn in exercise of powers under Section 120-B of the U.P. Zamindari Abolition and Land Reforms Act (the Act) but so far no such proceedings appear to have been initiated against the petitioner. It is also said, that the petitioner on the basis of those so-called forged entries or on suspicion cannot be held criminaliy liable. Reliance has also been placed on the principle of law laid down in the case of Jogendra Singh v. State of U.P. 1994 (31)ACC 431.

3. This petition has been reststed by Surendra Singh, learned A.G.A.-I and Sri G.S. Hajela, learned counsel for the C.B.I. Sri Surendra Singh, learned A.G.A. contended that after making an inquiry with regard to the forged and fraudulent entries in the revenue record, report was registered at the police station and that would itself make out prima facie case for the offences indicated above against the petitioner and further this court is not required to embark upon an inquiry with regard to the credibility of the allegations made in the report.

4. In order to appreciate the salient pointsraised by the learned counsel for the petitioner it shall be useful to make a brief resume of the facts as are appearing from the written report registered at Case Crime No.332/05 under Sections 218, 420, 467, 468, 471, 120B IPC read with Section 13(1D) of the Prevention of Corruption Act at P.S. Garh Mukteshwar, Ghaziabad. Under the orders of A.D.M., Land Acquisition/ Irrigation, Ghaziabad and also of the orders of S.D.M., Garh Mukteshwar dated 5.9.2005 the inquiry with regard to revenue entries pertaining to Village Kotla Khadar for the Fasli Year (F.Y.) 1395-1400, 1395-1400, 1407-1412 was done. On an inquiry it was revealed that:

> i) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.396/0-15-0, 407/0-10-0, 399/0-10-0, 400/0-16-0, 402/0-16-0, 401/0-16-0, 403/0-15-0 Pukhta Gram Sabha land was entered into the name of Sri Sumer Singh by the then Lekhpal and in-the Khatauni year 1407-1412F at Khata No.191 on the basis of the order dated 30.5.2000 said to have been passed by the Tehsildar in case No.472 in place of Sri Sumer Singh name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered.
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> ii) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.623/5/2-19-0, 520/1-1-0 Biglia Pukhta Gram Sabha land was entered into the name of Sri Tej Pal by the then Lekhpal which is at present registered at current Khatauni year 1407 at Khata No.161. That and on the basis of the order dated 29.5.2000 said to have been passed by the Tehsildar in case No.466 in place of Sri Tej Pal name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 2.6.2000.
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> iii) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.264/3/3-6-0, 279M/1-5-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Dai Bhagwan by the then Lekhpal which is at present registered in the current Khatauni year 1407-1412F at Khata No.73. That land on the basis, of the order dated 28.5.2000 said to have been passed by the Tehsildar in case No.459 in place of Sri Jai Bhagwan name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 26.5.2000.
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> iv) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.279M/2-17-0, 282/1-19-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Raksha Pal by the then Lekhpal which is at present registered in the current Khatouni year 1407-1412F at Khata NO.163A. That land on the basis of the order dated 30.5.2000

said to have been passed by the Tehsildar in case No.470 in place of Sri Raksha Pal name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 2.6.2000.

v) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.366/1-11-0, 372/1-0-0, 373/0-13-0, 375/0-13-0, 376/0-4-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Jile Singh by the then Lekhpal which is at present registered in the current Khataum year 1407-1412F at Khata No.71. That land on the basis of the order dated 3.5.2002 said to have been passed by the Tehsildar in case No.456 in place of Sri Jile Singh name of Sri Ganga Sanatan Dharrnarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi threugh sale deed got executed by Sri Narendra Singh (petitioner) was entered on 26.5.2000.

vi) In natauni year 1395-1400F on 5.7.1988 at Khasra Nos.5Q4/3-9-0, 523/0-12-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Jagveer by the then Lekhpal which is at present registered in the current Khatauni year 1407-1412F at Khata No.72. That land on the basis of the order dated 26.5.2000 said to have been passed by the Tehsildar in case No.458 in place of Sri Jagveer name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 26.5.2000.

vii) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.503/2-4-0, 624M/2-2-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Rampal by the then Lekhpal which is at present registered in the current Khatauni year 1407-1412F at Khata No.162. That land on the basis of the order dated 29.5.2000 said to have been passed by the Tehsildar in case No.467 in place of Sri Rampal name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered.

viii) In Khatauni year 1395-1400F on 5.7.1988 at Khasra Nos.62.4M/0-3-0, 625/1-3-0, 705/2-15-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Tej Pal by the then Lekhpal which is it present registered in the current Khatauni year 1407-1412F at Khata No.82. That land on the basis of the order dated 26.5.2000 said to have been passed by the Tehsildar in case No.462 in place of Sri Tej Pal name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered,

ix) In Khatauni year 1395-1400F on 5.7.1988 at Khasra No.624M/4-l-0 Bigha Pukhta Gram Sabha land was entered into the name of Sri Karn Singh by the then Lekhpal which is at present registered in the current Khatauni year 1407-1412F at Khata No.35. That land on the basis of the order dated 28.4.2001 said to have been passed by the Tehsildar in case No.385 in plare of Sri Karn Singh name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got

executed" by Sri Narendra Singh (petitioner) was entered on 15.5.2001.

x) In Khatauni year 1395-1400F on 5.7.1988 at Khasra No.624M/4-l-0 Bigha Pukhta Gram Sab'ha land was entered into the name of Sri Pratap Singh by the then Lekhpal which is at present registered in the current Khatauni year 1407-1412F at Khata No.114 That land on the basis of the order dated 24.5.2000 said to ' have been passed by the Tehsildar in case No.465 in place of Sri Pratap Singh name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 2.6.2000.

xi) In thatauni year 1395-1400F on 5.7.1988 at Khasra NO.624N/4-1-0 Bigha Pukhta Gram Sabha land was sntered into the name of Sri Khurshaid by the then Lekhpai which is at present registered in the current Khatauni year 1407-1412F at Khata No.40 That land on the basis of the order dated 28.4.2000 said to have been passed by the Tehsildar in case No.393 in place of Sri Khurshaid name of Sri Ganga Sanatan Dharmarth Trust, B-305 Som Vihar, R.K. Puram, New Delhi through sale deed got executed by Sri Narendra Singh (petitioner) was entered on 15.5.2000.

5. It has further been mentioned that in the F.Y. 1395-1400 the land was virtually not allotted in the name of any person said to have transferred it to the trust. They were not even the residents of that village. The entries for the F.Y. 1395-1400 were made by Lekhpai Sri Uttam Prakash Sharma and on that basis the entries were carried in the.Y. 1407-1412. It has also been mentioned that Sri Hari Singh, the then Lekhpai had also made the entries in the revenue record. On the basis of such inquiry involvement of revenue officials/Lekhpal and also of the petitioner was ascertainable. Consequently the written report was registered against the petitioner.

6. It has been urged by the learned counsel for the petitioner that he is a senior officer of the Police Department posted in Delhi. He brought this fact into the notice of the S.D.M., Garh Mukteshwar, Ghaziabad at the earliest opportunity on 6.3.2003 inviting his attention that certain wrong entries have been made in the revenue record and they should be set right. He had also expressed his apprehension that because of some error in computer data, such wrong entries appear to have taken place in the revenue record in the name of trust in question. Such letter is said to have been moved in the month of March, 2003 and this matter has been taken up in the current year. Petitioner himself was repeatedly reminding the revenue officers for setting right revenue records but instead of appreciating his bonafides this report was registered against him. As regards the making of all these correspondences by the petitioner, is concerned, some of the endorser, ents made on those letters have been referred. This would all be a matter of inquiry or adjudication as to who made the endorsements on those letters or they have been forged for the purpose of setting defence. No opinion can be expressed at this stage. Whatever the correspondence is made by the petitioner vide the D.O. letter dated 7.7.2004 to the Commissioner, Meerut Division that appears to have taken place when the matter with regard to the forged entries had already been taken up by the S.D.M. and the inquiry was initiated.

7. Now the point arises that huge land, measuring about 26 Bighas, has been registered in the name of the trust some times in the year 2001 and at that time no letter or objection appears to have been made by the petitioner. Petitioner's trust was the beneficiary of such entries and so it is for the petitioner to explain as to how those forged entries had taken place in the revenue record. He being the beneficiary to the said fraud shall be presumed to be party thereto. Reliance may be placed in the case of R.P. Yadav v. U.P. Board of High School and Intermediate Education, . It is always obligatory for the beneficiary under the document or the revenue record to prove due execution of the document on the basis of which entries were made in the name of trust in the revenue records, even dehors the reasonableness or otherwise of the transaction, to avail the benefit or claim or right under the document. Petitioner continued to have that benefit quite for sometime and now pleading ignorance would not be relevant. Petitioner's trust got it's name entered in the revenue records in place of earlier Patta holders. They are said to be related to petitioner and the way the properties came in the name of petitioner is not clear. Even now at this stage execution of sale deed by those Patta holders is also denied. This would convey an intentional design to have got the name of trust entered on Gaon Sabha land by illegal means. Further it shall not be of the point to refer the observations made by the Apex Court in the case of R. Sat Bharathi v. J. Jayalalitha and Ors., AIR 2004 SC 692 which are quoted herein-under:

> Crime is applied to those acts, which are against social order and are worthy of serious condemnation, Garafalo, an eminent criminologist, defined 'crime' in terms of immoral and anti-social acts. He says that "crime is an immoral and harmful act that is regarded as criminal by public opinion because it is an injury to so much of the moral sense as is possessed by a community "measure which is indispensable for the adaptation of the individual to society." The authors of the Indian Penal Code stated that :-
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> "...We cannot admit that a Penal Code is by any means to be considered as a body of ethics, that the legislature ought to punish acts merely because those acts are immoral, or that, because an act is not punished at all, it follows that the legislature considers that act as innocent Many things which are not punishable are morally worse than many things which are punishable. The man who treats a generous benefactor with gross ingratitude and insolence deserves more severe reprehension than the man who aims a blow in passion, or breaks a window in a frolic yet we have punishment; for assault and mischief, and none for ingratitude. The rich man who refuses a mouthful of rice to save a fellow-creature from death may be a far worse man than, the starving wretch who snatches and devours the rice; yet we punish the latter for theft, and we do not punish the former for hard-heartedness."

8. Further it has also been urgod that the S.D.M. vide the order dated 4.10.2004 passed in case No.25/04 under Sections 33-39 of the Act quashed those entries. In the judgment itself there is reference of he letter of the petitioner dated 20.5.2004. The date of the letter would itself show that the point with regard to the wrong entries in the revenue record was raised by the petitioner on 20.5.2004. It indicates that when the proceedings for cancellation of fake entries had already been taken it would not show his bonafides at this stage. Since it has already been mentioned that the

petitioner is the beneficiary and so in view of the arrangement made under Section 114 of the Evidence Act, it is for the petitioner to prove how those entries had come in his name.

9. It has further been urged by the learned counsel for the petitioner that he is a senior officer and in view of the principle of law laid down by the Apex Court in the case of P. Sirajuddin etc. v. State of Madras, before lodging any report there ought to have been a preliminary inquiry against him. That case was in reference to the act or omission of the government servant/senior officer in the discharge of his duties or misdemeanor. Here the allegations are altogether different and concerning to the land grabbing Prime facie case for the offences indicated above is apppearing against the petitioner. The S.D.M. depicts with minimal enquiries of the fraudulent action of all concerned in land grabbing. Moreover, it is a fraud of beneficiary in connivance of Revenue Officials and that would not make the court to grant stay of arrest. In the given circumstances no benefit can be achieved by the petitioner of the case of Jogendra Singh (supra). More so as there is the reference in the order of S.D.M. dated 4.10.2004 in case No. 25/04 under Sections 33/39 of the Act that some inquiry in the matter was done by the Tehsildar, Garh Mukteshwar.

10. Serious allegations are appearing against the netitioner at Case Crime No.332/05 under Sections 218, 420, 467, 468, 471, 120B IPC read with Section 13(1D) of the Prevention of Corruption Act at P.S. Garh Muktshwar, Ghaziabad. We do not find any justified and justifiable ground to interfere in the matter. Reliance may be placed on the principle of law laid down in the cases of State of Haryana v. Ch. Bhajan Lal , Ajay Mitra v. State of UP and Union of India v. Prakash P. Hinduja and Anr. JT 2003 (5) SC 300. In the result it is dismissed. However, the observations made in the order would not come in the way of trial.